

(36)

Tentative Ruling

Re: ***Abid Malik v. Doe Manager***
Superior Court Case No. 24CECG02235

Hearing Date: September 24, 2026 (Dept. 501)

Motion: by Nonparty National Interstate Insurance Company for
Leave to Intervene

Tentative Ruling:

To grant. (Code Civ. Proc. § 387, subd. (d)(1)(A).) Nonparty National Interstate Insurance Company shall serve and file its proposed pleading in intervention within 10 days of service of the order by the clerk.

Explanation:

"The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code Civ. Proc., § 387, subd. (d)(2).)

Labor Code section 3853 provides that:

If either the employee or the employer brings an action against such third person, he shall forthwith give to the other a copy of the complaint by personal service or certified mail. ... If the action is brought by either the employer or employee, the other may, at any time before trial on the facts, join as party plaintiff or shall consolidate his action, if brought independently.

Here, National Interstate Insurance Company seeks leave to file its proposed complaint-in-intervention to seek recovery of worker's compensation benefits paid to plaintiff Abid Malik, which it was required to pay pursuant to the workers' compensation insurance issued to plaintiff's employer, Peoplease, LLC. There is no enlargement of issues because both plaintiff's as well as proposed intervenor's claims arise from the same incident and thus involve similar questions of law and fact. The original parties did not file an opposition, and thus, there is no claim that intervention is untimely or will interfere with the rights of the original parties to conduct the lawsuit.

Accordingly, the motion is granted.

